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No. _____

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In The
Supreme Court of the United States
October Term, 1994

THE FLORIDA BAR,

Petitioner,

vs.

G. STEWART McHENRY; WENT FOR IT, INC.;
and JOHN T. BLAKELY,

Respondents.

**Petition For Writ Of Certiorari
To The United States Court Of Appeals
For The Eleventh Circuit**

PETITION FOR WRIT OF CERTIORARI

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QUESTIONS PRESENTED FOR REVIEW**I**

Whether the limits placed upon state authority by the decision below extend beyond any heretofore recognized by this court and provide lawyers with a greater degree of insulation from regulation of commercial solicitation than other groups.

II

Whether the challenged rules are narrowly tailored to serve substantial governmental interests and do not violate the First Amendment to the United States Constitution.

III

Whether Rules 4-7.4(b) and 4-7.8(a), Rules Regulating the Florida Bar, are valid time, place or manner restrictions.

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McHenry v. The Florida Bar, ___ F.2d 2258 (11th Cir.
1994) [App. 30]

JURISDICTIONAL GROUNDS

This is a petition to review a decision of the United
States Court of Appeals for the Eleventh Circuit entered
on May 10, 1994. This Court has jurisdiction pursuant to
28 U.S.C., § 1254(1).

 CONSTITUTIONAL PROVISION AND
RULES INVOLVED

Amendment I, United States Constitution:

Congress shall make no law respecting an estab-
lishment of religion, or prohibiting the free exer-
cise thereof; or abridging the freedom of speech,
or of the press; or the right of the people peace-
ably to assemble, and to petition the Govern-
ment for a redress of grievances.

Amendment XIV, Section 1, United States Constitution:

All persons born or naturalized in the United
States, and subject to the jurisdiction thereof, are
citizens of the United States and of the State
wherein they reside. No State shall make or

enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law, nor deny to any person within its jurisdiction the equal protection of the laws.

RULE 4-7.4(b), Rules Regulating The Florida Bar:

(b) Written Communication.

(1) A lawyer shall not send, or knowingly permit to be sent, on the lawyer's behalf or on behalf of the lawyer's firm or partner, an associate, or any other lawyer affiliated with the lawyer or the lawyer's firm, a written communication to a prospective client for the purpose of obtaining professional employment if:

(A) the written communication concerns an action for personal injury or wrongful death or otherwise relates to an accident or disaster involving the person to whom the communication is addressed or a relative of that person, unless the accident or disaster occurred more than 30 days prior to the mailing of the communication.

RULE 4-7.8(a), Rules Regulating The Florida Bar:

(a) When Lawyers May Accept Referrals. A lawyer shall not accept referrals from a lawyer referral service unless the service:

(1) engages in no communication with the public and in no direct contact with prospective clients in a manner that would violate the Rules of Professional Conduct if the communication or contact were made by the lawyer;

STATEMENT OF THE CASE

In 1987, ten years after this Court first held that attorneys had a constitutional right to advertise, The Florida Bar began a two-year study of lawyer advertising and solicitation. Among other things, the study included hearings throughout the state, a review of public commentary regarding attorney advertising, and a survey by a public opinion polling organization retained by the Bar to compile statistics on public attitudes toward attorney advertising and solicitation. The complete record of information compiled in the study was submitted to the Florida Supreme Court, along with a summary of the information, as part of a petition to amend the Rules Regulating The Florida Bar with respect to advertising and solicitation.¹

The survey found that Florida adults have negative feelings about direct-mail advertising by attorneys. "They perceive this advertising to have minimal informational content and to contain messages that appeal to the emotions rather than to reason, especially of gullible or upset people." The summary includes the results of a survey of recipients of direct-mail attorney solicitation. The summary concludes that 56% of such recipients believe that contacting persons concerning accidents and similar events is a violation of privacy. The study found that a broad spectrum of the Florida news media, historically the most vigorous advocates of unfettered speech, had

¹ *The Florida Bar: Petition to Amend the Rules Regulating the Florida Bar-Advertising Issues*, 571 So.2d 451 (Fla. 1990). A copy of the summary which was before the Supreme Court at the time it adopted the new rules was introduced in the trial Court.

strongly condemned attorney advertising in general, and solicitation of recent accident victims or the families of victims in particular.

In February, 1991, the Florida Supreme Court adopted amendments to the advertising rules. Among the rules adopted were Rule 4-7.4(b) and Rule 4-7.8(a), Rules Regulating the Florida Bar. *The Florida Bar: Petition to Amend the Rules Regulating The Florida Bar – Advertising Issues*, supra. Rule 4-7.4 prohibited lawyers from sending a written solicitation relating to an accident or disaster to the victim of such accident or disaster, or a relative of such victim, within thirty days after the accident or disaster. Rule 4-7.8 prohibits a lawyer from accepting a referral from a referral service which fails to comply with the rules regulating attorney communications.

In March, 1992, G. Stewart McHenry and his wholly owned corporation, Went For It, Inc., filed this action in the Middle District of Florida, challenging Rules 4-7.4, and 4-7.8 Rules Regulating the Florida Bar, as being in derogation of the plaintiffs' free speech rights under the First Amendment to the United States Constitution. Jurisdiction of the District Court was invoked to review a question arising under the United States Constitution pursuant to 28 U.S.C., § 1331.

The Complaint alleged that McHenry had sent direct mail advertising letters concerning an action for personal injury to targeted accident victims within 30 days of the accident and wished to continue such practice in the future. Went For It, Inc. alleged that it wished to conduct business in Florida as a lawyer referral business, and that it desired to contact accident victims and their families by

mail within 30 days of an accident and to refer interested persons to personal injury attorneys in Florida.

On October 24, 1992, McHenry was disbarred by the Florida Supreme Court for conduct unrelated to the issues raised in this action.² McHenry's case was thereby rendered moot and the action continued on the claim of Went For It, Inc. The parties all filed motions for summary judgment which were submitted to Magistrate Judge Charles Wilson for consideration. Judge Wilson received briefs and heard oral argument, and issued his Report and Recommendation. He found that Rule 4-7.4 served a substantial governmental interest and was narrowly tailored to achieve its desired objective. Judge Wilson additionally found that the provision was a reasonable time, place or manner restriction and concluded that it did not violate the United States Constitution. He recommended that summary judgment be entered for the Bar. [App. 1]

The District Judge rejected the recommendation of Judge Wilson and held, as a matter of law, that the challenged rule violates the First, Fifth and Fourteenth Amendments to the United States Constitution. The Court granted summary judgment for the plaintiff. [App. 18]

The decision was appealed to the Eleventh Circuit Court of Appeals. After filing of the Notice of Appeal, the appellees moved, without objection, to add John T. Blakely as a plaintiff based upon identical allegations to

² McHenry, who had previously been publicly reprimanded twice, was disbarred for engaging in sexual misconduct in the presence of clients. *The Florida Bar v. McHenry*, 605 So.2d 459 (Fla. 1992).

those that had been made by McHenry. The case was temporarily remanded to the trial court for consideration of the motion and Blakely was added on December 17, 1993. On May 10, 1994, the Eleventh Circuit, while expressing dissatisfaction at what it perceived to be the necessary result, affirmed. [App. 30]

ARGUMENT

I

THE LIMITS PLACED UPON STATE AUTHORITY BY THE DECISION BELOW EXTEND BEYOND ANY HERETOFORE RECOGNIZED BY THIS COURT AND PROVIDE LAWYERS WITH A GREATER DEGREE OF INSULATION FROM REGULATION OF COMMERCIAL SOLICITATION THAN OTHER GROUPS.

In its opinion affirming the District Court decision, the Eleventh Circuit expressed dissatisfaction with what it perceived to be the result required by this Court's line of decisions in *Bates v. State of Arizona*, 433 U.S. 350, 97 S.Ct. 2691, 53 L.Ed.2d 810 (1977) and the cases that followed. The Circuit Court stated:

Justice Powell predicted in *Bates* that recognizing First Amendment protections for attorney advertising would "effect profound changes in the practice of law, viewed for centuries as a learned profession." 433 U.S. at 389, 97 S.Ct. at 2712 (Powell, J., concurring in part and dissenting in part.) That prediction has proven true. Unfortunately, the resulting changes have not necessarily been for the better. We are disturbed that *Bates* and its progeny require the decision we reach today.

Id. at 2265. [App. 45-46] The concerns voiced by the Eleventh Circuit echo the comments of Justices O'Connor, Rehnquist and Scalia in *Shapero v. Kentucky Bar Ass'n*, 486 U.S. 466, 108 S.Ct. 1916, 100 L.Ed.2d 475 (1988) and *Peel v. Attorney Registration and Disciplinary Comm'n*, 496 U.S. 91, 110 S.Ct. 2281, 110 L.Ed.2d 83 (1990).

The Eleventh Circuit, as other circuits, has acknowledged this Court's statement that states may regulate lawyer commercial solicitation "in the service of a substantial governmental interest," and "through means that directly advance that interest." *Zauderer v. Office of Disciplinary Counsel*, 471 U.S. 626, 638, 105 S.Ct. 2265, 85 L.Ed.2d 652 (1985). Nevertheless, it has become clear that the lower federal courts perceive this Court's opinions to be such that, in practical effect, they leave no room for state regulation of lawyer solicitation which is not in-person or deceptive. If that perception is incorrect, it is important that the Court clarify the true boundaries of state authority. If the perception is accurate, the Court is respectfully urged to revisit the issue in order to avoid placing lawyers in a privileged class, beyond the bounds of regulation available for other groups. This Court has held that, "The Constitution . . . accords a lesser protection to commercial speech than to other constitutionally guaranteed expression." *Central Hudson Gas v. Public Service Comm'n*, 447 U.S. 557, 563, 100 S.Ct. 2343, 65 L.Ed.2d 341 (1980). However, as noted under this Point and Point II below, the Eleventh Circuit opinion would accord lawyer commercial solicitation a greater degree of protection in certain respects than even political and ideological speech.

This Court has consistently held that the exercise of First Amendment freedoms, including speech, is subject to reasonable limitations when the nature of such exercise is detrimental to, or inconsistent with, the mission of the public institution within which the freedom is exercised. Thus, the Court has upheld such limitations in the fields of public employment, *Rankin v. McPherson*, 483 U.S. 378, 384, 107 S.Ct. 2891, 97 L.Ed.2d 315 (1987) ["The determination of whether a public employer has properly discharged an employee for engaging in speech requires 'a balance between the interests of the employee, as a citizen, in commenting upon matters of public concern and the interest of the State, as an employer, in promoting the efficiency of the public services it performs through its employees.' "], penal institutions, *Hudson v. Palmer*, 468 U.S. 517, 523, 104 S.Ct. 3194, 82 L.Ed.2d 393 (1984) [Prisoners "retain those First Amendment rights of speech 'not inconsistent with . . . the legitimate penological objectives of the corrections system.' "], the armed forces, *Goldman v. Weinberger*, 475 U.S. 503, 507, 106 S.Ct. 1310, 89 L.Ed.2d 478 (1986) ["The military need not encourage debate or tolerate protest to the extent that such tolerance is required of the civilian state by the First Amendment; to accomplish its mission the military must foster instinctive obedience, unity, commitment, and esprit de corps."], and educational institutions, *Hazelwood School District v. Kuhlmeier*, 484 U.S. 260, 266, 108 S.Ct. 562, 98 L.Ed.2d 592 (1988) ["A school need not tolerate student speech that is inconsistent with its 'basic educational mission' . . . even though the government could not censor similar speech outside the school."]

The basic theme underlying all of the foregoing decisions is that the state must be given the latitude to regulate types of expression which are exercised within the context of certain fundamental public institutions when such expression is reasonably determined by the state to have an adverse impact upon the overall mission of the institution. Significantly, all of the above decisions involved the exercise of political, ideological or religious expression, the most highly revered of all free speech rights. It is indisputable that the administration of justice is at least as fundamental a mission as those involved in the cited cases. Attorneys who engage in commercial solicitation do so within the context of, and with potential adverse impact upon, our system of justice. Nevertheless, this Court's decisions regarding attorney commercial solicitation, at least as interpreted by the Eleventh and other circuits, have not accorded the states nearly the degree of deference provided in connection with the administration of other public functions.

This Court's opinion in *Bates v. State of Arizona*, supra, rested upon the presumption that attorney advertising would serve "individual and societal interests in assuring informed and reliable decisionmaking," and its finding of "the postulated connection between advertising and the erosion of true professionalism to be severely strained." Id. at U.S. 364, 368. The Court questioned the assertion that advertising would diminish attorneys' reputations in the community, noting that, "Bankers and engineers advertise, and yet these professions are not regarded as undignified." Id. at U.S. 369. In the seventeen years since the *Bates* decision, the development of attorney advertising, as suggested in the opinion below, has

not been as favorable as the *Bates* Court anticipated. One need only open the yellow pages of any major city telephone directory to realize that the great bulk of attorney advertising provides citizens with little or no useful information, and is far less professional than that engaged in by bankers, engineers and most other professionals. Studies such as that performed by The Florida Bar indicate that such advertising has resulted in a negative perception of, and loss of confidence in the legal profession. In his Report and Recommendation, the Magistrate Judge found:

The Bar's two-year study of lawyer advertising and solicitation conducted preliminarily to the implementation of its advertising rule discloses that Florida adults, generally, have negative feelings about direct-mail advertising by attorneys. The public feels that attorneys who participate in direct-mail advertising sacrifice professionalism to promote their own pecuniary self-interest. Florida adults believe that direct-mail advertising promotes frivolous and unwarranted lawsuits, resulting in higher legal costs and belittling the legal profession.

[App. 6] It cannot be doubted that maintenance of public confidence in all elements of the judicial system is essential to a stable democracy. The states have been hamstrung, however, by the perception by lower federal courts that this Court's decisions leave little or no room for states to judge the impact of attorney advertising upon the judicial system and to act accordingly.

While the Court is encouraged to revisit the entire question of states' authority to regulate attorney solicitation, it is not necessary to do so in order to reverse the

lower Court decision. As Points II and III below illustrate, the lower Court's reluctant striking of the challenged rules was not necessitated by this Court's holdings.

II

THE CHALLENGED RULES ARE NARROWLY TAILORED TO SERVE SUBSTANTIAL GOVERNMENTAL INTERESTS AND DO NOT VIOLATE THE FIRST AMENDMENT TO THE UNITED STATES CONSTITUTION.

Attorney advertising falls within the scope of commercial speech which this Court has afforded "a limited measure of protection, commensurate with its subordinate position in the scale of First Amendment values" and is subject to "modes of regulation that might be impermissible in the realm of non-commercial expression." *Bates v. State Bar of Arizona*, 433 U.S. 350, 97 S.Ct. 2691, 53 L.Ed.2d 810 (1977); *Ohrlik v. Ohio State Bar Association*, 436 U.S. 447, 98 S.Ct. 1912, 1918, 56 L.Ed.2d 444 (1978). Although regulation of constitutionally protected commercial speech does not have to meet the least restrictive means test, the Court has held that such regulation must directly advance a substantial governmental interest and be narrowly tailored to fit the governmental objective. *Central Hudson Gas & Electric Corp. v. Public Service Comm'n*, 447 U.S. 557, 566, 100 S.Ct. 2343, 2351, 65 L.Ed.2d (1980); *Board of Trustees v. Fox*, 492 U.S. 469, 109 S.Ct. 3028, 106 L.Ed.2d 388 (1989).

The State has a substantial interest in protecting the personal privacy and tranquility of persons who were themselves, or whose loved ones were, recent victims of

personal injury or death. This Court has recognized in a variety of areas that the State has a substantial interest in preserving the quality of life of its citizens. Indeed, that interest has been so substantial as to justify restrictions upon political and ideological speech. Thus, the Court has upheld ordinances prohibiting the posting of election signs on public property, *Members of City Counsel v. Taxpayers for Vincent*, 466 U.S. 806, 104 S.Ct. 2118, 2129, 80 L.Ed.2d 772 (1984), ["It is well settled that the state may legitimately exercise its police powers to advance esthetic values."], prohibiting the use on public streets of sound trucks emitting loud noises, *Kovacs v. Cooper*, 336 U.S. 77, 69 S.Ct. 448, 454 (1949), ["The preferred position of freedom of speech in a society that cherishes liberty for all does not require legislators to be insensible to claims by citizens to comfort and convenience."], and prohibiting ideological picketing directed at the residence of an individual. *Frisby v. Schultz*, 487 U.S. 474, 108 S.Ct. 2495, 101 L.Ed.2d 420 (1988).

In *Frisby*, the Court upheld a law which was passed for the purpose of prohibiting anti-abortion picketing outside the residence of a doctor accused of performing abortions. The court stated:

The State's interest in protecting the well-being, tranquility, and privacy of the home is certainly of the highest order in a free and civilized society.

* * *

One important aspect of residential privacy is protection of the unwilling listener. Although in many locations, we expect individuals simply to avoid speech they do not want to hear [citations

omitted] the home is different. That we are often 'captives' outside the sanctuary of the home and subject to objectionable speech . . . does not mean we must be captives everywhere.

Id. at 2502. In a comment significantly descriptive of direct-mail solicitation, the Court noted that, "The type of picketers banned by the . . . ordinance generally do not seek to disseminate a message to the general public, but to intrude upon the targeted residence, and to do so in an especially offensive way." *Id.* at 2503. The Court's focus on the distinction between picketing directed at the general public and picketing directed at a specific individual is directly analogous to the distinction between mass media advertising and direct-mail solicitation. The Court's concern over "residential privacy" is also applicable to direct-mail solicitation since it is primarily directed to persons in their homes.³

The communication which is the subject matter of the challenged rules is no less an intrusion on personal privacy and tranquility and no less offensive than the election signs in *Taxpayers for Vincent*, the sound trucks in *Kovacs*, or the picketing in *Frisby*. To the contrary, in an important respect it is more intrusive and offensive because it involves a much more personal matter and it is

³ A statistical analysis by The Florida Bar of direct-mail advertising submissions from April, 1991 through March, 1992 indicates that a minimum of 87% were sent to residential addresses. The actual figure is probably close to 100% since the source of the names and addresses of most accident victims is the Department of Motor Vehicles [R. 15], and Florida law requires that drivers list their residence addresses with the Department. § 322.08, Fla. Stat.

knowingly and intentionally directed at persons who are most vulnerable. In *Matter of Anis*, 599 A.2d 1265 (N.J. 1992), the Supreme Court of New Jersey described such conduct in its analysis of a restriction similar to Florida's:

Nothing in the Constitution . . . requires us to countenance solicitation that intrudes upon victims or their families in the initial throes of their grief What we are talking about here . . . is conduct that is patently offensive to the common sensibilities of the community because it intrudes upon the private grief of victims or their families, serves only to compound their sorrow and solicits representation of them at a moment of their extreme vulnerability.

* * *

The non-intrusive nature of the communication in *Shapero* is what commended the solicitation to commercial speech protection. [citation omitted] In contrast, the form of solicitation at issue here is so universally condemned that its intrusiveness can hardly be disputed.

* * *

We have no doubt, then, that the commercial speech guarantees of the First Amendment do not protect attorney conduct that is universally regarded as deplorable and beneath common decency because of its intrusion upon the special vulnerability and private grief of victims or their families.

Id. at 1270. The lower court decision leaves us with an indefensible legal doctrine which holds that the State has a sufficiently substantial interest in protecting the "comfort and convenience" of its citizens from loud noise or

their "esthetic" sensibilities from political signs, but does not have a sufficiently substantial interest to protect them, in times of deep personal trauma, from crass commercial intrusion upon their private grief and residential tranquility "that is universally regarded as deplorable and beneath common decency."

III

THE CHALLENGED RULES ARE VALID TIME, PLACE OR MANNER RESTRICTIONS.

While commercial speech is given only a "subordinate position in the scale of First Amendment values," political and ideological speech sit at the very top of the scale. Nevertheless, even these most highly protected forms of speech are subject to reasonable time, place and manner restrictions:

Expression, whether oral or written or symbolized by conduct, is subject to reasonable time, place, or manner restrictions. We have often noted that restrictions of this kind are valid provided that they are justified without reference to the content of the regulated speech, that they are narrowly tailored to serve a significant governmental interest, and that they leave open ample alternative channels for communication of the information.

Clark v. Community or Creative Non-violence, 468 U.S. 288, 104 S.Ct. 3065, 3069, 82 L.Ed.2d 221 (1984). The lower court concluded that the challenged rules are not valid

time, place or manner restrictions because the thirty-day ban was not content-neutral.⁴

The Court's conclusion is not consistent with this Court's interpretation of "content-neutral":

The principal inquiry in determining content-neutrality, in speech cases generally and in time, place, or manner cases in particular, is whether the government has adopted a regulation of speech because of disagreement with the message it conveys. [citation omitted] The government's purpose is the controlling consideration. A regulation that serves purposes unrelated to the content of expression is deemed neutral, even if it has an incidental effect on some speakers or messages but not others. [citation omitted] Government regulation of expressive activity is content-neutral so long as it is "justified without reference to the content of the regulated speech."

Ward v. Rock Against Racism, 491 U.S. 78, 109 S.Ct. 2746, 2754, 105 L.Ed.2d 661 (1989) [emphasis by Court]. Thus, this Court has established that the mere fact that the content of a communication must be referred to in order

⁴ Petitioner does not concede that the challenged rule requires reference to content in the first place. While the wording of the rule appears to focus on the content of the letter, in practical effect, it has nothing to do with content. Its application is based upon the nature of the intended recipient as an accident victim or family of a victim. It is not necessary for the Bar to review the content of a letter in order to determine whether or not the rule is applicable. The Bar need only determine the source of the list of recipients of the letter.

to determine whether the speech is subject to the regulation does not render it content-based. The question is whether the challenged regulation is "justified without reference to the content of the regulated speech." In *Ward*, the city attempted to regulate the volume of amplified music played in a public park. The case arose out of a concert sponsored by a group dedicated to the promotion of anti-racist views. The Court of Appeals struck the regulation, holding that the city had failed to prove that its regulation was the least restrictive means of regulating the volume. This Court agreed that music is a form of expression which is protected under the First Amendment and that the area in which the music was being played was a public forum, "in which the government's right to regulate expression is subject to the protections of the First Amendment." *Id.* at S.Ct. 2746. Nevertheless, the Court reversed. The state interest recognized in *Ward* as being sufficiently compelling has particular bearing on the case at bar:

The principal justification for the sound-amplification guideline is the city's desire to control noise levels at Bandshell events in order to retain the character of Sheep Meadow and its more sedate activities, and to avoid undue intrusion into residential areas and other areas of the park. This justification for the guideline 'has nothing to do with content' [citation omitted] and it satisfies the requirement that time, place, or manner regulations be content neutral.

Id. at S.Ct. 2754.

The regulation in the case at bar meets the Supreme Court's definition of content-neutral because it is "justified without reference to the content of the regulated speech." The regulation is not intended to prohibit the message (solicitation of business), but, like the regulation in *Ward*, to avoid undue intrusion into the personal privacy of individuals during a particularly trying period. The regulation is limited to letters directed at victims of accidents or personal injury because that is the primary group which the state perceives to be in need of protection, not because of the content of the message. If the ban applied to all direct-mail solicitation the Court below would then undoubtedly have concluded that the regulation was overbroad because it would have reached solicitation that the state has no substantial interest in regulating.

The challenged rules also fall within the scope of the doctrine upon which this Court upheld the ordinance in *Renton v. Playtime Theatres, Inc.*, 475 U.S. 41, 106 S.Ct. 925, 89 L.Ed.2d 29 (1986). The ordinance prohibited adult motion picture theaters from locating within 1,000 feet of any residential zone, church, park or school. Like rule 4-7.4(b), the *Renton* ordinance required reference to the content of the motion pictures shown to determine whether the regulation was applicable to a particular theater. Nevertheless, the Court upheld the ordinance based upon the fact that it was "aimed not at the content of the films shown at 'adult motion picture theaters,' but rather at the secondary effects of such theaters on the surrounding community." *Id.* at U.S. 46. Similarly, the

challenged rule is not aimed at the content of the message, but at the secondary effects upon the legal profession, and ultimately upon our system of justice, occasioned by the public's reaction to the particular type of advertising.

The Court is also urged to consider that opinions like the one below often place undue emphasis on the content review element of the time, place or manner test as though it stands alone. The content review question is, in most cases, logically intertwined with the other two elements. If the regulation is narrowly drawn and there are truly ample alternative avenues of the same communication left open, it follows that it is highly unlikely that the regulation was directed at the content of the message.

The challenged Florida rules leave ample alternative means of communication. The rules are extremely narrow, applying only during a short 30-day period and only to one particular form of communication. Lawyers are free to communicate the same message by direct-mail at any time more than 30 days from the date of the accident or disaster and are free to communicate the same message by any other advertising mode during the 30-day hiatus. The Comments to Rule 4-7.4, as adopted by the Florida Supreme Court, makes specific reference to the alternative means of advertising available to lawyers pursuant to Rule 4-7.4, including "billboards and other signs, radio, television and recorded messages the public may access by dialing a telephone number".

In its initial opinion recognizing that attorney advertising was entitled to First Amendment protection, this Court expressly noted, "that there may be reasonable

restrictions on the time, place and manner of advertising." *Bates v. State Bar of Arizona*, supra at 97 S.Ct. 2709. It is difficult to conceive of a type of attorney solicitation regulation that would qualify under the time, place and manner doctrine if the challenged rules do not. The rules are both reasonable commercial speech restrictions and time, place and manner regulations, and are entitled to be upheld on either basis.

Respectfully submitted,

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UNITED STATES DISTRICT COURT
MIDDLE DISTRICT OF FLORIDA
TAMPA DIVISION

G. STEWART McHENRY, and
WENT FOR IT, INC., a Florida
corporation,

Plaintiff,

v.

CASE NO. 92-370-CIV-T-17A

THE FLORIDA BAR and SUSAN
V. BLOEMENDAAL, in her official
capacity as Assistant Staff Counsel of
The Florida Bar,

Defendants.

REPORT AND RECOMMENDATION

THIS CAUSE is before the Court upon Plaintiffs' Motion For Summary Judgment (Doc. 10) and Defendants' Motion For Summary Judgment (Doc. 14).¹ The Court having considered all documents of record and the argument of counsel at the April 27, 1992 hearing, recommends that Plaintiffs' Motion for Summary Judgment be denied and that the Defendants' Motion for Summary Judgment be granted to the extent, and for the reasons, set forth below.

¹ United States Judge Elizabeth A. Kovachevich specifically referred these motions to the undersigned for report and recommendation. (Doc. 11)

Factual and Procedural Background

This dispute focuses upon a lawyer advertising rule that went into effect on April 1, 1991. Rule 4-7.4, *Direct contact with prospective clients*, prohibits direct mail advertising of legal services relating to actions for personal injury or wrongful death until more than thirty days have elapsed from the accident or disaster mentioned in the written communication.² The prohibition of Rule 4-7.4 is imputed to lawyer referral services in Rule 4-7.8.³

² Rule 4-7.4 provides in pertinent part:

(b) Written communication.

(1) A lawyer shall not send, or knowingly permit to be sent, on behalf of himself, his firm, his partner, an associate or any other lawyer affiliated with him or his firm, a written communication to a prospective client for the purpose of obtaining professional employment if:

a. The written communication concerns an action for personal injury or wrongful death or otherwise relates to an accident or disaster involving the person to whom the communication is addressed or a relative of that person, unless the accident or disaster occurred more than thirty days prior to the mailing of the communication.

³ Rule 4-7.8 provides in pertinent part:

4-7.8 Lawyer referral services.

(a) A lawyer shall not accept referrals from a lawyer referral service unless the service:

(1) Engages in no communication with the public and in no direct contact with prospective clients in a manner that would violate the Rules of Professional Conduct if the communication or contact were made by the lawyer;

(b) A "lawyer referral service" is any person, group of persons, association, organization, or entity that receives a fee or charge for referring or causing the

Plaintiff G. Stewart McHenry has sent direct mail advertising letters for legal services relating to actions for personal injury to targeted accident victims within thirty days of their accidents, and wants to continue this practice in the future. Plaintiff Went for It, Inc. wishes to contact accident victims and their families by mail within thirty days of their accidents and refer them to personal injury attorneys in Florida.

When Defendants The Florida Bar and Susan V. Bloemendaal threatened Plaintiff G. Stewart McHenry with disciplinary action for violating Rule 4-7.4(b)(1)a, Plaintiffs filed this action for declaratory and injunctive relief pursuant to 42 U.S.C. §§ 1983 and 1988, and 28 U.S.C. §§ 2201 and 2202. Plaintiffs seek a declaration that 1) Rule 4-7.4(b)(1)a of the Rules Regulating The Florida Bar, imposing a thirty-day ban on certain direct mail lawyer advertising, violates the First, Fifth, and Fourteenth Amendments to the Constitution of the United States; and 2) Rule 4-7.8, which effectively imposes the thirty-day ban on lawyer referral services wishing to do business with Florida attorneys, similarly violates the First, Fifth and Fourteenth Amendments.

The Plaintiffs originally filed a motion for preliminary injunction requesting that the Court enjoin the Defendants from enforcing the challenged rules. However, after counsel conferred, the Plaintiffs withdrew their motion for preliminary injunction and the parties filed

direct or indirect referral of a potential client to a lawyer drawn from a specific group or panel of lawyers.

cross motions for summary judgment. Oral argument on the motions was held on April 27, 1992.

Standard of Review

This circuit holds that summary judgment should only be entered when the moving party has sustained its burden of showing the absence of a genuine issue as to any material fact when all the evidence is viewed in the light most favorable to the non-moving party. *Sweat v. Miller Brewing Co.*, 708 F.2d 655 (11th Cir. 1983). All doubt as to the existence of a genuine issue of material fact must be resolved against the moving party. *Hayden v. First Nat'l Bank of Mt. Pleasant*, 595 F.2d 994, 996-97 (5th Cir. 1979)⁴, quoting *Gross v. Southern R.R. Co.*, 414 F.2d 292 (5th Cir. 1969). Factual disputes preclude summary judgment.

The parties have stipulated that there are no genuine issues of material fact in this case. The Court, upon consideration of the matter, agrees. Summary judgment is therefore appropriate here.

ISSUE

The specific issue to be resolved is whether, as a matter of law, the Florida Bar's thirty-day ban on targeted, direct mail lawyer advertising violates the First, Fifth and Fourteenth Amendments to the United States Constitution.

⁴ The case law of the Fifth Circuit prior to September 30, 1981 has been adopted as precedent in this judicial circuit. *Bonner v. City of Prichard*, 661 F.2d 1206 (11th Cir. 1981) (en banc).

DISCUSSION

In *Bates v. State Bar of Arizona*, 433 U.S. 350 (1977), the Supreme Court decided that advertising by lawyers was a form of commercial speech entitled to First Amendment protection. Attorney advertising falls within the scope of commercial speech which the Supreme Court has afforded "a limited measure of protection, commensurate with its subordinate position in the scale of First Amendment values" and is subject to "modes of regulation that might be impermissible in the realm of non-commercial expression." *Ohralik v. Ohio State Bar Ass'n*, 436 U.S. 447, 456 (1978).

A lawyer's constitutional right to engage in targeted, direct mail advertising was unequivocally established by the Supreme Court in *Shapero v. Kentucky Bar Association*, 486 U.S. 466 (1988). In *Shapero*, the Court held that states may not impose an absolute ban on targeted, direct-mail solicitation by attorneys but could enact less restrictive measures to prevent deceptive and abusive advertisements. *Id.*, at 476-478. Commercial speech which is not misleading and which does not concern unlawful activities may be restricted if the restriction serves a substantial governmental interest and is imposed through means that directly advance that interest. *Id.* at 472. "Since state regulation of commercial speech 'may extend only as far as the interest it serves . . . state rules that are designed to prevent the 'potential for deception and confusion . . . may be no broader than reasonably necessary to prevent the perceived evil.'" *Id.* (citations omitted).

In *Peel v. Attorney Regulation and Disciplinary Commission*, 496 U.S. 91 (1990), the Court again declined to allow a total ban on direct-mail attorney solicitation but allowed more limited regulations, ruling that "a total ban is unconstitutional, but such a ruling 'does not necessarily preclude less restrictive regulations of [such] commercial speech. *Id.* at 110, n.17.

Time, place and manner of limitations of the nature of those involved in this case are valid provided that they not only are narrowly tailored to serve a significant government interest, but are "content-neutral" and "leave open ample alternative channels of communication." *Perry Education Association v. Perry Local Educator's Ass'n*, 460 U.S. 37, 45 (1983).

The first inquiry is whether there is a substantial governmental interest sought to be regulated by the thirty day ban. The Florida Bar's two-year study of lawyer advertising and solicitation conducted preliminarily to the implementation of its advertising rule discloses that Florida adults, generally, have negative feelings about direct-mail advertising by attorneys. The public feels that attorneys who participate in direct-mail advertising sacrifice professionalism to promote their own pecuniary self-interest. Florida adults believe that direct-mail advertising promotes frivolous and unwarranted lawsuits, resulting in higher legal costs and belittling the legal profession. The Florida Bar asserts that restraints on attorney advertising play a significant role in preserving the legal profession as a genuine profession rather than as a trade association.

The Bar further asserts that its thirty-day ban is necessary to serve two substantial interests: First, to protect individuals in a "sensitized state" who have recently suffered injury or lost loved ones, from undue influence, intimidation and over-reaching by lawyers using direct-mail solicitation; and second, to protect the "personal privacy and tranquility of persons who are themselves, or whose loved ones, were recent victims of personal injury or wrongful death." Defendant's memo at 5-7. These interests are supported by the summary of the record on the Florida Bar's petition to the Florida Supreme Court To Amend The Rules Regulating Lawyer Advertising attached to the affidavit of John Griffin (Doc. 15).

There is a substantial governmental interest to be served by enacting rules regulating targeted direct-mail advertising. State bar associations have the inherent authority to police the ethical standards of the profession within its area of authority. The regulations are intended to guard the public against misleading and abusive solicitation. Admittedly, the majority opinion in *Shapero* distinguishes targeted, direct mail solicitation from in-person solicitation, finding that the former "poses much less risk of over-reaching or undue influence" than does in-person solicitation". *Shapero*, 486 U.S. at 475, quoting *Zauderer v. Office of Disciplinary Counsel at Supreme Court of Ohio*, 471 U.S. 626, 642 (1985). "Unlike the potential client with a badgering advocate breathing down his neck, the recipient of a letter . . . can 'effectively avoid further bombardment of [his] sensibilities simply by averting [his] eyes . . . a letter like a printed advertisement (but unlike a lawyer), can readily be put in a drawer to be considered later, ignored, or discarded." *Shapero*,

466 U.S. at 475 (citations omitted). Yet, *Shapero* recognizes that while misleading and deceiving communications may be avoided by other forms of regulation, targeted direct mail solicitation still presents lawyers "with opportunities for isolated abuses or mistakes, although such instances does not justify a total ban on that mode of protected commercial speech." *Shapero* at 476. *Shapero*, therefore leaves the door open to state regulation of such advertisements through less restrictive measures to prevent abuse, such as requiring that a personalized letter bear a label identifying it as an advertisement or a statement informing the recipient how to report an inaccurate or misleading letter.⁵ *Shapero* at 477-478.

Even truthful, non-deceptive advertisement is of such concern as to warrant regulation for the benefit of the public. In upholding the discipline of an attorney for sending a solicitation letter to the family of a person who had died in an airline crash two weeks before, the Supreme Court of New Jersey stated in the matter of *Anis*, 599 A.2d 1265 (N.J. 1992):

Nothing in the Constitution . . . requires us to countenance solicitation that intrudes upon the victims or their families in the initial throes of their grief . . . What we are talking about here . . . is conduct that is patently offensive to

⁵ Various other restrictions on targeted direct mail advertising are imposed within the Florida Bar's rule. For example, Rule 4-7.4(b)(2)(a), provides that each letter and envelope must be marked on the outside in red as an "advertisement." Rule 4-7.4(b)(1)(f) precludes the mailing of an advertisement letter when the lawyer knows or should have known of a particular victim's inability to make reasoned decisions.

the common sensibilities of the community because it intrudes upon the private grief of victims or their families, serves only to compound their sorrow and solicits representations of them at a moment of their extreme vulnerability.

Id. at 1270-71.

Similarly, the Florida Bar has the same governmental interest:

There is a potential for abuse inherent in direct solicitation by a lawyer of prospective clients known to need legal services. It subjects the lay person to the private importuning of a trained advocate, in a direct interpersonal encounter. A prospective client often feels overwhelmed by the situation giving rise to the need for legal services and may have an impaired capacity for reason, judgment and protective self-interest. Furthermore, the lawyer seeking the retainer is faced with a conflict stemming from the lawyer's own interest, which may color the advice and representation offered to vulnerable prospect.

The situation is therefore fraught with the possibility of undue influence, intimidation, and over-reaching. This potential for abuse inherent in direct solicitation of prospective clients justifies the thirty day restriction, particularly since lawyer advertising permitted under Rule 4-7.2 offers an alternative means of communicating necessary information to those who may be in need of legal services.

The Florida Bar: Petition To Amend The Rules Regulating The Florida Bar-Advertising Issues, 571 So.2d 451, 468 (Fla. 1990).

Having established that the thirty day ban furthers a substantial governmental interest, the next inquiry is whether it is "narrowly tailored to achieve the desired objective. Plaintiff argues that a thirty-day ban is, in effect, an absolute ban since it will deprive accident victims of information at a time when it is most useful to them. Plaintiff argues that a thirty day ban travels farther than is necessary to protect vulnerable potential clients from the exertion of undue influence by the soliciting lawyer. As stated in *Shapero*, a letter, like a printed advertisement (but unlike a lawyer), can readily be put in a drawer to be considered later, ignored, or discarded.

Shapero, however, cannot be read to preclude the implementation of a reasonable time restriction on direct-mail targeted advertising. All that *Shapero* provides is that a state may not absolutely ban such advertisements. A total ban is unlawful under *Shapero*. A thirty-day ban is not a total ban, it is a partial ban, which *Shapero* does not make unlawful. Discretion is vested in state bar associations to fashion restrictions sufficient to control the possibility of abuses or mistakes by the advertising lawyer. Although no mention is made of time restrictions, the opinion in *Shapero* suggests the possibility of other regulations such as requiring the lawyer to file any solicitation with a state agency, giving the state ample opportunity to supervise mailings and penalize actual abuses. *Shapero* at 476. In *In Re: R.M.J.*, 455 U.S. 191 (1982), Justice Powell, writing for the majority, states:

Truthful advertising relating to lawful activities is entitled to the protections of the First Amendment. But when the particular content or method of the advertising suggest that it is inherently misleading or when experience has proved that in fact such advertising is subject to abuse, the states may impose appropriate restrictions . . . Even when a communication is not misleading, the state retains some authority to regulate. But the state must assert a substantial interest and the interference with speech must be in proportion to the interest served."

Id. at 203.

Although the Supreme Court has ruled that the First Amendment protects lawyer advertising and that states may not ban targeted direct-mail advertising, the Court has nonetheless recognized the considerable latitude accorded to the states in the context of state regulation of professional standards for attorneys, as long as the regulations are reasonable. "Our cases have repeatedly stated that government restrictions upon commercial speech may be no more broad or no more expansive than 'necessary' to serve its substantial interests. (citations omitted). *Board of Trustees v. Fox*, 492 U.S. 469, 476 (1989).

The narrowly tailored standard does not require that there be " 'no conceivable alternative'. Rather, the Court requires 'only that the regulation not 'burden substantially more speech than is necessary to further the government's legitimate interest.'" *Board of Trustees v. Fox*, 492 U.S. at 478 quoting *Ward v. Rock Against Racism*, 491 U.S. 781, 799 (1989). "And we have been loathe to second-guess the Government's judgment to that effect." *Board of Trustees v. Fox* at 478. Quoting *Shapero*, the Court in *Fox*

noted that almost all of the restrictions determined to be violative of the First Amendment have been "substantially excessive, disregarding 'far less restrictive and more precise means' ". *Fox* at 469. The Supreme Court states that in its decisions upholding the regulation of commercial speech, "it [is] 'up to the [states] to decide that point, so long as its judgment was reasonable.'" *Fox* at 479. More particularly, the Court in *Fox* stated:

What our decision require [sic] is a 'fit' between the [states] ends and the means chosen to accomplish those ends' . . . a fit that is not necessarily perfect, but reasonable; that represents not necessarily the single best disposition but one whose scope is 'in proportion to the interest served . . . that employs not necessarily the least restrictive means but, as we have put in the other context . . . a means narrowly tailored to achieve the desired objective. **Within those bounds we leave it to governmental decision-makers to judge what manner of regulation may best be employed.** (emphasis supplied)

Board of Trustees v. Fox at 480.

Although the state bears the burden of justifying its restrictions, it must affirmatively establish the reasonable fit required. *Zauderer*, 471 U.S. at 647. *Fox* further recognizes the difficulty of establishing at which point state bar restrictions on lawyer advertising are sufficiently narrowly tailored to comply with First Amendment requirements, ultimately recognizing that regulatory authorities must be vested with "needed leeway" in the commercial

speech field which is "traditionally subject to governmental regulation". *Board of Trustees v. Fox*, at 481, quoting *Ohralik v. Ohio State Bar Association*, *supra*, 436 U.S. at 455-456.

Although the Florida Bar's Petition to amend the rules regulating lawyer advertising does not specifically tie the thirty-day time period to a perceived time within which the dissipation of the desensitized state of the accident victim takes place, the Supreme Court has never held a state "to the burden of demonstrating empirically the objective effects on the regulations at issue. See *Munro v. Socialist Worker's Party*, 479 U.S. 189, 195 (1986). In *Munro* the Supreme Court considered a challenge to a state's provision precluding the solicitation of votes within 100 feet of the entrance to a polling place as violative of the First Amendment. Although the issue was considered within the context of political expression rather than commercial speech, the Court's analysis is helpful in resolving the issue at bar. The Court did not require proof that the boundary be perfectly tailored to deal with voter intimidation and election fraud. Rather, the Court stated that the legislature, in that instance, "should be permitted to respond to potential deficiencies . . . with foresight rather than reactively, provided that the response is reasonable and does not significantly impinge on constitutionally protected rights." *Id.* at 195-196.

The constitutionality of a time restriction on targeted direct-mail advertising in this case is an issue of first impression. However, the New Jersey Supreme Court in *Anis* suggests that a reasonable time restriction would withstand scrutiny in that state, stating:

Would a truthful solicitation letter sent fifteen or thirty days after a tragic loss reach people when they are no longer emotionally weak or vulnerable? We cannot say with certainty since our assumptions in such cases are largely untested . . . hence, we attempt no permanent bright-line rule in this opinion. We hereby refer the issue to our committee on attorney advertising to conduct the type of informational hearing that might best inform us how we might draw a clearer line of vulnerability. In such a hearing process, the committee might invite comments from the public or public organizations concerned with the delivery of legal services . . . pending the suggested hearing process, and in order to New Jersey attorneys reasonable interim guidance . . . we shall not impose discipline for truthful letters of solicitation sent more than two weeks after such a disaster occurs and loss becomes known.

In effect, the New Jersey Supreme Court approved a two-week ban on targeted, direct-mail advertising by members of the New Jersey Bar.

It is not within the province of the courts to determine the length of the ban on targeted direct-mail advertising by the states, so long as the time is reasonable. Therefore, the Florida Bar should be permitted discretion to fashion restrictions on advertising as permitted by *Shapero* so long as the restrictions do not significantly impinge on constitutional rights. This Court should not fashion the time restriction itself, but only review the restriction to determine whether or not it infringes upon the First Amendment.

Restrictions on commercial speech must not only be narrowly tailored to serve a significant governmental interest, but must leave open ample alternatives for communication. *United States v. Grace*, 461 U.S. 171, 177 (1983). See also *Ward v. Rock Against Racism*, *supra*, at 791 (1989). The Florida Bar thirty-day ban obviously leaves open the alternatives of television, radio, newspaper and yellow page advertisement in the telephone book for lawyers seeking to provide the public with knowledge about the availability of their services, without a time restriction.⁶

Clearly, the restriction at issue here is content neutral since it restricts not what the lawyer says, but the mode of communication.

Plaintiff's argument that the thirty-day rule is an unreasonable classification in violation of the equal protection clause of the United States Constitution is equally without merit. The argument is based upon plaintiff's contention that the regulation is over-inclusive or under-inclusive since it fails to distinguish between accident victims who suffer minor injuries as opposed to those who suffer major injuries and are in a more sensitized or vulnerable state. Plaintiff, however, is unable to point the Court to any authority to support its position that a regulation is unconstitutional because it is over or under inclusive. As stated in *United States R.R. Retirement Board*

⁶ The comments to Florida Bar Rule 4-7.4 makes reference to alternative means of advertising available to lawyers including "billboards and other signs, radio, television and recorded messages the public may access by dialing a telephone number."

v. Fritz, 449 U.S. 166, 175 (1980), quoting *Dandridge v. Williams*, 397 U.S. 471, 485-86 (1990):

In the area of economics and social welfare, a State does not violate the Equal Protection Clause merely because the classifications made by its laws are imperfect. If the classification has some 'reasonable basis' it does not offend the Constitution simply because the classification 'is not made with mathematical nicety or because in practice it results in some inequality.' (citation omitted) 'The problems of government are practical ones and may justify, if they do not require, rough accommodations - illogical, it may be, and unscientific.'

The Constitution does not require states to devise regulations of this nature in such a fashion that would accommodate every conceivable circumstance.

CONCLUSION

This Court is unable to conclude that the thirty-day ban on targeted-direct mail lawyer advertising is so far afield that it escapes the boundaries of constitutional unacceptability. Accordingly, I recommend that the **Defendant's Motion For Summary Judgment (Doc. 14)** be GRANTED and that the **Plaintiff's Motion For Summary Judgment (Doc. 10)** be DENIED.

Respectfully submitted on this 5th day of August, 1992.

/s/ Charles R. Wilson
CHARLES R. WILSON
UNITED STATES
MAGISTRATE JUDGE

Copies furnished to:

Counsel of Record

UNITED STATES DISTRICT COURT
MIDDLE DISTRICT OF FLORIDA
TAMPA DIVISION

G. STEWART McHENRY, and
WENT FOR IT, INC., a Florida
Corporation,

Plaintiffs,

v.

CASE NO. 92-370-CIV-T-17A

THE FLORIDA BAR and SUSAN (Filed Dec. 14, 1992)
V. BLOEMENDAAL, in her
official capacity as
Assistant Staff Counsel of
The Florida Bar,

Defendants.

ORDER ON REPORT AND RECOMMENDATION

This cause came to be heard before the Honorable Charles R. Wilson, United States Magistrate Judge, upon Plaintiffs' Motion For Summary Judgment and Defendants' Cross-Motion For Summary Judgment. Judge Wilson had the authority to hear this motion pursuant to 28 U.S.C. § 636(b)(1), and Rule 72 of the Federal Rules of Civil Procedure.

After considering all documents of record and the arguments of counsel at the April 27, 1992, hearing and being otherwise fully advised on the premises, Judge Wilson recommended that Plaintiffs' Motion For Summary Judgment be denied and that Defendants' Motion For Summary Judgment be granted. Judge Wilson found that as a matter of law, Florida Bar Rule 4-7.4(b)(1)a,

which imposes a thirty-day ban on personal injury and wrongful death targeted direct mail lawyer advertising, and Rule 4-7.8, which effectively imposes the same ban on lawyer referral services in Florida, do not violate the First, Fifth, or Fourteenth Amendments of the United States Constitution.

This Court has reviewed the findings of fact set out in the Report and Recommendation. With respect to these dispositive motions, this Court must make a *de novo* determination in accordance with the rules; after review of the specific written objections by the litigants. 28 U.S.C. § 636(b)(1)C; Rule 72(b), Fed. R. Civ. P.; *United Steelworkers of Am., AFL-CIO v. New Jersey Zinc Co., Inc.*, 828 F.2d 1001, 1005 (3d Cir. 1987); *Hantz v. Shiley, Inc., a Div. of Pfizer, Inc.*, 766 F.Supp. 258 (D.N.J. 1991).

Factual and Procedural Background

This case focuses on the amendments to Florida Bar rules regulating lawyer advertising, which became effective April 1, 1991. Rule 4-7.4 prohibits direct mail advertising [sic] of legal services relating to actions for personal injury or wrongful death until more than thirty days have elapsed from the accident or disaster mentioned in the written communication. The consequence of Rule 4-7.4 is imputed to lawyer referral services through Rule 4-7.8.

This cause of action was originally brought by both G. Stewart McHenry¹ and Went For It, Inc. On October

¹ Plaintiff, G. Stewart McHenry, as a member of the Florida Bar had sent direct mail advertisements for legal services to

24, 1992, G. Stewart McHenry was disbarred by the Florida Supreme Court which caused his cause of action against the Defendants to become moot. However, this does not moot the entire case. There remains a case and controversy between the corporate Plaintiff, Went For It, Inc., and Defendants. Plaintiff, Went For It, Inc., desires to conduct business in the State of Florida as a lawyer referral service, utilizing direct mail advertising targeted at personal injury victims and their families.

Plaintiff originally filed a motion for a preliminary injunction requesting that the Court enjoin Defendants from enforcing the challenged rules. However, after counsel conferred, Plaintiff withdrew its motion for preliminary injunction, and both parties filed cross motions for summary judgment.

Standard of Review

Summary judgment should only be entered when the moving party has sustained its burden of showing the absence of a genuine issue as to any material fact when all the evidence is viewed in the light most favorable to the non-moving party. *Sweat v. Miller Brewing Co.*, 708 F.2d 655 (11th Cir. 1983). " '[A]ll doubt as to the existence of a genuine issue of material fact must be resolved against the party moving for summary judgment.' " *Hayden v. First Nat'l Bank of Mount Pleasant, Texas*, 595 F.2d

personal injury victims in the past. He wanted to continue direct mail solicitation to personal injury victims, after the Florida Bar passed the disputed rules.

655 (5th Cir. 1979)², quoting *Gross v. Southern R.R. Co.*, 414 F.2d 292 (5th Cir. 1969). Factual disputes preclude summary judgment.

The parties in the case at bar have stipulated that there are no genuine issues of material fact in this case. Upon review of the record the Court agrees that summary judgment is appropriate.

ISSUE

Whether, as a matter of law, the Florida Bar's thirty-day ban, on personal injury and wrongful death targeted direct mail lawyer advertising, violates the First, Fifth, and Fourteenth Amendments to the United States Constitution.

DISCUSSION

Justice Stevens' opinion in *Peel v. Attorney Registration and Disciplinary Commission of Illinois*, 496 U.S. 91, 110 S.Ct. 2281, 110 L.Ed.2d 83 (1990), reaffirmed the court's resolve to provide First Amendment protection to attorney targeted mail advertising, stating:

Whether the inherent character of a statement places it beyond the protection of the First Amendment is a question of law over which Members of this court should exercise de novo review. (citation omitted). That the judgment below is by a State Supreme Court exercising

² The Eleventh Circuit adopted as precedent all case law of the Fifth Circuit prior to September 30, 1981. *Bonner v. City of Prichard, Ala.*, 661 F.2d 1206 (11th Cir. 1981) (en banc).

review over the actions of its State Bar Commission does not insulate it from our review for constitutional infirmity. (citation omitted). The Commission's authority is necessarily constrained by the First Amendment to the Federal Constitution, and specifically by the principle that disclosure of truthful, relevant information is more likely to make a positive contribution to decision making [sic] than is concealment of such information. (citation omitted).

Id. at 108. Furthermore, the court noted that, "A principal reason why consumers do not consult lawyers is because they do not know how to find a lawyer able to assist them with their particular problems. [Federal Trade Commission, "Staff Report on Improving Consumer Access to Legal Services: The Case for Removing Restrictions of Truthful Advertising" (1984)]. *Id.* at 110.

A. Substantial Government Interest Test

Defendants justify the thirty day ban on targeted mail advertising by citing to comments on Rule 4-7.4, as follows:

There is a potential for abuse inherent in direct solicitation by a lawyer of prospective clients known to need legal services. It subjects the lay person to the private importuning of a trained advocate, in a *direct interpersonal encounter*. A prospective client often feels overwhelmed by the situation giving rise to the need for legal services and may have an impaired capacity for reason, judgment, and protective self-interest. Furthermore, the lawyer seeking the retainer is

faced with a conflict stemming from the lawyer's own interest, which may color the advice and representation offered the vulnerable prospect.

The situation is therefore fraught with the possibility of undue influence, intimidation, and overreaching. This potential for abuse inherent in direct solicitation of prospective clients justifies the thirty-day restriction, particularly since lawyer advertising permitted under rule 4-7.2 offers an alternative means of communicating necessary information to those who may be in need of legal services.

...

This restriction is reasonably required by the sensitized state of the potential clients, who may be either injured or grieving the loss of a family member, and the abuses which experience has shown exist in this type of solicitation. (emphasis added).

The Florida Bar: Petition to Amend Rules Regulating The Florida Bar Advertising Issues, 571 So.2d 451, 468 (Fla. 1990).

The Court in *Shapero v. Kentucky Bar Ass'n*, 486 U.S. 466, 108 S.Ct. 1916, 100 L.Ed.2d 475 (1988), established that truthful straightforward direct mail lawyer advertising is constitutionally protected commercial speech and that the state must have a substantial interest that is directly advanced by any infringement of that commercial speech. The substantial interests which Defendants allege were dealt with in *Shapero*. Defendants', and the Florida Supreme Court's, use of the words "direct interpersonal encounter" to describe targeted mail advertising

by lawyers is a strained interpretation. Justice Brennan made it clear that a letter, unlike a "badgering advocate," can be avoided merely by placing it in a drawer to be considered later, ignored or discarded. *Id.* at 476-7. The concern for potential clients feeling overwhelmed was considered by that court:

The relevant inquiry is not whether there exist potential clients whose "condition" makes them susceptible to undue influence, but whether the mode of communication poses a serious danger that lawyers will exploit any such susceptibility.

Id. at 474. Lastly, concerns of deliberate overreaching by lawyer advertising is precluded by Rule 4-7.4(b)(1)(f) which was not challenged.³

The *Shapero* court found that a targeted letter conveys information about legal services in a manner that is more conducive to the reader reflecting and making an informed choice as a consumer. *Id.* at 476. Furthermore, the court stated that:

[T]he First Amendment does not permit a ban on certain speech merely because it is more efficient; the State may not constitutionally ban

³ Rule 4-7.4(b)(1)(f) provides in pertinent part:

(b) Written communication.

(1) A lawyer shall not send, or knowingly permit to be sent, on behalf of himself, his firm, his partner, an associate or any other lawyer affiliated with him or his firm, a written communication to a prospective client for the purpose of obtaining professional employment of: . . .

(f) The lawyer knows or reasonably should know that the physical, emotional, or mental state of the person makes it unlikely that the person would exercise reasonable judgment in employing a lawyer.

a particular letter on the theory that to mail it only to those whom it would most interest is somehow inherently objectionable.

Id. at 473-4. For these reasons, this Court has determined that the concerns expressed above by Defendants do not justify a prophylactic rule prohibiting targeted direct mail advertising to personal injury and wrongful death victims for thirty days.

Defendants argue that the thirty day period of prohibited targeted advertising does not constitute a ban. They assert that *Peel* gave authority for such a rule, since the proscription is merely a limited regulation. (Defendants' Cross-Motion for Summary Judgment, page 6, citing to *Peel*, at 110, n. 17). The footnote which Defendants cite as authority for the thirty day ban was referring to disclosure requirements and screening of advertisements to "ensure that the information is presented in a non-misleading [sic] manner." *Peel*, at 110-111. The fault in Defendants' logic is that waiting thirty days will not affect whether the targeted letter is misleading any more than if the ban were not in effect. Therefore the limitation is not narrowly tailored in a manner that advances the substantial government interest which Defendants assert.

B. Time, Place and Manner Restriction

Defendants further argue that the thirty day ban is a valid time, place, and manner restriction by equating personal injury and wrongful death targeted lawyer advertising to prohibited political and ideological speech. They argued that direct mail advertising "is no less an intrusion on personal privacy and tranquility and no less

offensive than the election signs in *Taxpayers for Vincent*,⁴ the sound trucks in *Kovacs*,⁵ or the picketing in *Frisby*.⁶

Defendants' strained analogies are not persuasive, primarily because they are all examples where the parties, subjected to such speech, could not "avoid further bombardment of [their] sensibilities simply by averting [their] eyes." *Ohrlik v. Ohio State Bar Ass'n*, 436 U.S. 447, 465, n. 25, 98 S.Ct. 1925, 56 L.Ed.2d 444 (1978) [quoting *Cohen v. California*, 403 U.S. 15, 21, 91 S.Ct. 1780, 29 L.Ed.2d 284 (1971)]. This is not the case with targeted lawyer letters which are clearly marked in red as "advertisement" (See, Rule 4-7.4(b)(1)f.(2)a.) and can be discarded by the recipient without any fear of legal recourse or filed away until a consumer desires to read the letter.

Furthermore, this is not a valid time, place, and manner restriction because it is the content of the advertisement which is banned for thirty days. In *Simon & Schuster, Inc. v. New York Crime Victims Board*, the court held: "Regulations which permit the Government to discriminate on the basis of the content of the message cannot be tolerated under the First Amendment," 112 S.Ct. 501, 508, 116 L.Ed.2d 476, 60 U.S.L.W. 4029 (1991)

⁴ *Members of City Council of City of Los Angeles v. Taxpayers for Vincent*, 466 U.S. 789, 104 S.Ct. 2118, 80 L.Ed.2d 772 (1984), (prohibiting the posting of election signs on public property).

⁵ *Kovacs v. Cooper*, 336 U.S. 77, 69 S.Ct. 448, 93 L.Ed. 513 (1949), (prohibiting the use on public streets of sound trucks emitting loud noises).

⁶ *Frisby v. Schultz*, 487 U.S. 474, 108 S.Ct. 2495, 101 L.Ed.2d 420 (1988), (prohibited anti-abortion picketing outside of residence of a doctor accused of performing abortions).

[quoting *Regan v. Time Inc.*, 468 U.S. 641, 648-49, 104 S.Ct. 3262, 82 L.Ed.2d 487 (1984)]. Although the case at bar does not receive the heightened protection of political speech, the restrictions placed on direct mail advertising must be narrowly tailored in a manner that advances the substantial government interest of protecting recipients from misleading advertisements. The same family members in a wrongful death case, which the thirty day ban alleges to protect, may be contacted the next day by a probate attorney. Thus, it is the content which Defendants wish to restrict for thirty days, and this cannot be permitted under the auspices of a time, place and manner restriction.

Defendants argue that bar rules "leave open ample alternative channels for communication of the information." [Defendants' Cross Motion for Summary Judgment, page 11; citing to *Clark v. Community for Creative Non-Violence*, 468 U.S. 288, 104 S.Ct. 3065, 82 L.Ed.2d 221 (1984)]. However, this Court need not address that issue, because the thirty day ban on targeted lawyer advertising is not content neutral and cannot be upheld as a valid time, place and manner restriction.

C. In re Anis

Defendants next assert that the New Jersey Supreme Court addressed the issue before this court in *In re Anis*, 599 A.2d 1265, 126 N.J. 448 (N.J.1992). That case involved a solicitation letter sent by Mr. Anis to the family of a victim of the disaster on December 21, 1938, involving Pan American Flight 103 over Lockerbie, Scotland. *Id.* at 1267. However, this case is distinguishable in that Mr.

Anis engaged in false and misleading advertising. He failed to indicate a range of his fees, misrepresented what other lawyers would charge, and misrepresented his professional experience in litigating aircraft accidents. *Id.* at 1271-72. Furthermore, he admitted to sending the letter without knowing whether the victim's body had been identified, which is a violation of a New Jersey rule similar to Rule 4-7.4(b)(1)(f). *Id.* at 1270. The New Jersey Supreme Court decided "not [to] impose discipline for truthful letters of solicitation sent more than two weeks after such a disaster occurs and [the] loss becomes known." *Id.* at 1271. The New Jersey Supreme Court used this as interim guidance pending a hearing process by their bar. *Id.* at 1271. The New Jersey Court explained:

We realize that there may be other cases in which it will be more difficult to draw the line of ethical propriety. Would a truthful-solicitation letter sent fifteen or thirty days after a tragic loss reach people when they are no longer emotionally weak or vulnerable? We cannot say with certainty, since our assumptions in such cases are largely untested. It may be that there are degrees of loss or suffering. Common sense tells us that the mildly-injured survivors of an overturned-bus incident might be less vulnerable than the Lockerbie families. Hence, we attempt no permanent brightline [sic] rule in this opinion.

Id. at 1271. None of the foregoing egregious conduct is present in this case and in contradistinction the Florida Supreme Court enacted such a bright-line. As a result, this Court does not find *In re Anis* to be persuasive

authority in upholding the Florida Bar's thirty day ban on target direct mail advertising.

Conclusion

The challenged rules substantially impair and impede the availability of truthful and relevant information which can make a positive contribution to consumers in need of such legal services. This Court holds that as a matter of law, the Florida Bar's thirty-day ban on personal injury and wrongful death targeted direct mail lawyer advertising violates the First, Fifth, and Fourteenth Amendments to the United States Constitution. Accordingly, it is

ORDERED that the Report and Recommendation be rejected by this Court; Plaintiff's Motion for Summary Judgment be **granted**; Defendants' Motion for Summary Judgment be **denied**; and the Clerk of the Court be **directed** to enter judgment for Plaintiff in accord with this order.

DONE and ORDERED in chambers, in Tampa, Florida on this 14th day of December, 1992.

/s/ Elizbeth A. Kovachevich
ELIZABETH A. KOVACHEVICH
United States District Judge

Copies furnished to:
All parties and counsel of record.

**G. Stewart McHENRY, Went For It,
Inc., a Florida Corporation, John
T. Blakely, Plaintiffs-Appellees,**

v.

**THE FLORIDA BAR, Susan V.
Bloemendaal, Defendants-Appellants.**

No. 93-2069.

United States Court of Appeals,
Eleventh Circuit.

May 10, 1994.

Lawyer and lawyer referral service brought suit challenging constitutional validity of Florida Bar rule prohibiting lawyers from using direct mail to solicit personal injury or wrongful death clients within 30 days of accident. The United States District Court for the Middle District of Florida, No. 92-370-CIV-T-17A, Elizabeth A. Kovachevich, J., 808 F.Supp. 1543, ruled that 30-day ban on such advertising violated the First Amendment. Florida Bar appealed. The Court of Appeals, Black, Circuit Judge, held that: (1) rule could not be justified by state's interest in protecting persons traumatized by recent injury, or by state's interest in protecting personal privacy and tranquility of persons affected by personal injury or death, and (2) rule was not a valid time, place, and manner restriction, since it was not content-neutral either on its face or as applied.

Affirmed.

Appeal from the United States District Court for the
Middle District of Florida.

Before BLACK, Circuit Judge, DYER, Senior Circuit
Judge, and ALAIMO*, Senior District Judge.

BLACK, Circuit Judge:

The question in this appeal is whether The Florida Bar's thirty-day ban on direct mail lawyer advertising soliciting personal injury and wrongful death clients violates commercial speech protections afforded attorney advertising under the First Amendment. The district court ruled that it does. We affirm.

I.

Subject to approval by the Florida Supreme Court, The Florida Bar (Bar) promulgates rules that regulate the manner in which Florida lawyers may contact prospective clients for the purpose of obtaining professional employment. See R. Regulating Fla. Bar 4-7.1 to -7.7 (Rules). The Rules generally prohibit lawyers from in-person, telephone, telegraph, or facsimile solicitation of prospective clients with whom the lawyer has no family or prior professional relationship. *Id.* at 4-7.4(a).¹ The

* Honorable Anthony A. Alaimo, Senior U.S. District Judge for the Southern District of Georgia, sitting by designation.

¹ Rule 4-7.4, Direct Contact with Prospective Clients, reads in pertinent part:

(a) **Solicitation.** A lawyer shall not solicit professional employment from a prospective client with whom the lawyer has no family or prior professional relationship, in person or otherwise, when a significant motive for the lawyer's doing so is the lawyer's pecuniary gain. . . . The term "solicit" includes contact in person, by telephone, telegraph, or facsimile, or by

Rules permit direct mail solicitation of prospective clients except under certain conditions, *id.* at 4-7.4(b)(1), and provide specific requirements that must be followed when lawyers solicit clients through the mail, *id.* at 4-7.4(b)(2). Client solicitation rules apply indirectly to lawyer referral services through the Bar's prohibition on lawyers accepting referrals from services that contact potential clients in a manner that would violate the Rules if the contact was made by a lawyer. *Id.* at 4-7.8(a)(1).²

Appellee McHenry, a member of The Florida Bar when he filed this suit, regularly solicited personal injury and wrongful death clients via direct mail before being disbarred for acts unrelated to the facts of this case.³ New rules regarding client solicitation by mail took effect in January 1991,⁴

other communication directed to a specific recipient and includes any written form of communication directed to a specific recipient and not meeting the requirements of subdivision (b) of this rule.

² Rule 4-7.8, Lawyer Referral Services, reads in pertinent part:

(a) **When Lawyers May Accept Referrals.** A lawyer shall not accept referrals from a lawyer referral service unless the service:

(1) engages in no communication with the public and in no direct contact with prospective clients in a manner that would violate the Rules of Professional Conduct if the communication or contact were made by the lawyer.

³ *The Florida Bar v. McHenry*, 605 So.2d 459 (Fla.1992).

⁴ *The Florida Bar: Petition to Amend the Rules Regulating The Florida Bar - Advertising Issues*, 571 So.2d 451, 460 (Fla.1990) (*Petition - Advertising Issues*). The Bar petitioned the Florida Supreme Court to amend the rules regulating attorney advertising. The Court approved the Bar's proposed rules with certain modifications. *Id.*

including a new rule that prohibits lawyers from using direct mail to solicit personal injury or wrongful death clients "unless the accident or disaster [for which representation is sought] occurred more than 30 days prior to the mailing of the communication." *Id.* at 4-7.4(b)(1)(A).⁵ McHenry and Went For It, Inc. (WFI), a lawyer referral service owned by McHenry, sued the Bar to enjoin enforcement of Rule 4-7.4(b)(1)(A), asserting that, but for its prohibition, they would send such letters within thirty days of an accident or disaster.⁶

⁵ The Bar originally proposed to the Florida Supreme Court a total prohibition of all direct mail advertising target to potential personal injury or wrongful death clients. *Petition - Advertising Issues*, 571 So.2d at 459. The Court disapproved the proposal, acknowledging that United States Supreme Court precedent prohibited such a ban. *Id.* The Florida Supreme Court held, however, that it could constitutionally "restrict [such advertising] by directing that any mail advertising pertaining to personal injury and wrongful death claims shall be mailed no earlier than thirty days after the incident which precipitated the claim." *Id.* The Court modified the Bar's proposal and instituted the thirty-day ban. *Id.*

⁶ Appellees do not challenge any other Bar rules regarding client solicitation by mail. We presume, without deciding the constitutional validity of any other rules, that the letters they propose to send will comply with all other regulations established in Rule 4-7.4(b), including:

(1) no letters will be sent to persons known to be represented by another attorney in the matter;

(2) no letters will be sent to persons who have made it known to the sender that they do not want to receive such communication;

(3) no letters will subject the recipient to coercion, duress, fraud, overreaching, harassment, intimidation or undue influence;

McHenry's suit became moot when he was disbarred. WFI continued as a plaintiff because it alleged injury in fact from the indirect application of the thirty-day ban to

(4) no letters will contain false, deceptive, or unfair statements or claims;

(5) no letters will be sent if the sender knows or reasonably should know that the physical, emotional or mental state of the recipient makes it unlikely that the recipient would exercise reasonable judgment in employing a lawyer;

(6) the face of every envelope will be marked in red with the word "advertisement," and every page of any letter sent will be similarly marked;

(7) a copy of the letter and envelope will be sent to the designated committee of the Bar and retained by the sender as required;

(8) letters will be sent by regular U.S. mail only, not by any other means;

(9) letters will contain no reference suggesting that the letter has been approved by the Bar;

(10) the appropriate statement of qualifications will accompany each letter sent;

(11) the first sentence of the letter will be "If you have already retained a lawyer for this matter, please disregard this letter";

(12) the letter will look like a letter, not a pleading or other legal document;

(13) if the matter will be handled by a lawyer other than the lawyer sending the letter, a statement to that effect will be included;

(14) the letter will disclose how the sender obtained information about the recipient's involvement in the accident or disaster that prompted the letter; and

(15) the nature of the recipient's legal problem will not be revealed on the outside of the envelope.

it through Rule 4-7.8(a)(1).⁷ WFI maintains that the thirty-day ban is an unconstitutional restriction on commercial speech in violation of the First Amendment. The Bar submits that the ban serves substantial governmental interests that justify the restriction on speech. In addition, the Bar maintains that the ban is a content-neutral time, place, and manner restriction on speech.

All parties agreed that there were no genuine issues of material fact for trial and submitted cross motions for summary judgment. The district court referred the case to a magistrate judge, who found that the thirty-day ban on direct mail solicitation of personal injury and wrongful death clients withstood constitutional scrutiny and recommended that summary judgment be granted in favor of the Bar. On review of the magistrate judge's report and recommendation, the district court disagreed. It held that the ban violated constitutional protections of free speech

⁷ The Washington Legal Foundation and The Allied Educational Foundation submitted an *amici curiae* brief to this Court asserting that WFI lacked standing independent of McHenry to maintain this suit in the district court. The Bar and WFI both maintain that jurisdiction is proper despite the mootness of McHenry's claim. We are persuaded that WFI alone has standing to bring this claim. See *Cone Corp. v. Florida Dep't of Transp.*, 921 F.2d 1190, 1204 (11th Cir.), *cert. denied*, ___ U.S. ___, 111 S.Ct. 2238, 114 L.Ed.2d 479 (1991). In addition, on limited remand from this Court, the district court granted WFI's unopposed motion to add Appellee Blakely, a member of The Florida Bar, as a party Plaintiff. Blakely asserts that, but for Rule 4-7.4(b)(1)(A), he would engage in direct mail solicitation of clients during the thirty-day period. Thus, even if WFI lacked standing, Appellee Blakely has standing to challenge the thirty-day ban on direct mail advertising.

and granted summary judgment in favor of WFI. 808 F.Supp. 1543.

II.

In 1977, the Supreme Court first ruled that states could not prohibit certain truthful advertising by lawyers concerning the availability and price of legal services. *Bates v. State Bar*, 433 U.S. 350, 384, 97 S.Ct. 2691, 2709, 53 L.Ed.2d 810 (1977). Subsequently, the Supreme Court has held that states may ban completely a lawyer's in-person solicitation of clients to prevent the potential for overreaching, undue influence, and intimidation on members of the public that is present when "a professional trained in the art of persuasion, personally solicits an unsophisticated, injured, or distressed lay person." *Ohralik v. Ohio State Bar Ass'n*, 436 U.S. 447, 464-68, 98 S.Ct. 1912, 1923-25, 56 L.Ed.2d 444 (1978). States may not, however, ban outright the use of direct mail by attorneys to solicit clients known to be in need of legal services. *Shapiro v. Kentucky Bar Ass'n*, 486 U.S. 466, 473, 108 S.Ct. 1916, 1921-22, 100 L.Ed.2d 475 (1988).

Today, "[l]awyer advertising is in the category of constitutionally protected commercial speech." *Id.* at 472, 108 S.Ct. at 1921. As such, lawyer advertising "that is not false or deceptive and does not concern unlawful activities . . . may be restricted only in the service of a substantial governmental interest, and only through means that directly advance that interest." *Zauderer v. Office of Disciplinary Counsel*, 471 U.S. 626, 638, 105 S.Ct. 2265, 2275, 85 L.Ed.2d 652 (1985). In further defining the connection between the means chosen to advance the

government interest in regulating commercial speech and the interest itself, the Supreme Court has explained that the means must simply fit:

a fit that is not necessarily perfect, but reasonable; that represents not necessarily the single best disposition but one whose scope is in proportion to the interest served; that employs not necessarily the least restrictive means but . . . a means narrowly tailored to achieve the desired objective.

Board of Trustees v. Fox, 492 U.S. 469, 480, 109 S.Ct. 3028, 3035, 106 L.Ed.2d 388 (1989) (citation and internal quotation omitted). Because there is no suggestion that Appellee's proposed direct mail solicitations will be false or deceptive, the Bar must demonstrate that its thirty-day ban serves a substantial government interest and is narrowly tailored to achieve that interest.

The Bar submits that two substantial governmental interests are served by the thirty-day ban: (1) protecting persons traumatized by recent injury to themselves or members of their family who are likely to be in a state of mind which inhibits objective evaluation of a personalized solicitation from a lawyer, and (2) protecting the personal privacy and tranquility of persons who were themselves, or whose loved ones were, recent victims of personal injury or death. We conclude that neither of these asserted interests justifies a thirty-day ban on otherwise constitutionally protected direct mail advertising by attorneys.

A.

In *Shapero*, the Supreme Court rejected the assertion that a state could ban truthful, direct mail solicitation of persons overwhelmed by legal troubles because their capacity to exercise good judgment in selecting a lawyer was assertedly impaired. 486 U.S. at 474, 108 S.Ct. at 1922. In that case, the Kentucky Bar Association denied approval of a truthful letter that an attorney proposed to send to potential clients he learned had a foreclosure suit filed against them. *Id.* at 469, 108 S.Ct. at 1919. The court first noted that Kentucky could not constitutionally prohibit the attorney from sending a nearly identical letter, suggesting his services if the need should ever arise, to an at-large audience *not* known to need representation. *Id.* at 473, 108 S.Ct. at 1921. Turning to the targeted nature of the solicitation, the Court explained that "the First Amendment does not permit a ban on certain speech merely because it is more efficient." *Id.* at 473, 108 S.Ct. at 1922.

The Court further recognized that persons overwhelmed to the degree that their capacity for good judgment is impaired would have the same impairment whether evaluating an attorney's newspaper advertisement, a general solicitation letter, or a targeted solicitation letter. *Id.* The Court thus concluded that "[t]he relevant inquiry is not whether there exist potential clients whose 'condition' makes them susceptible to undue influence, but whether the mode of communication poses a serious danger that lawyers will exploit any such susceptibility." *Id.* Targeted direct mail advertising, the mode of communication in *Shapero* and in this case, " 'poses much less risk of overreaching or undue influence' than

does in-person solicitation." *Id.* (quoting *Zauderer*, 471 U.S. at 642, 105 S.Ct. at 2277).

As the Court pointed out, a letter does not present " 'the coercive force of the personal presence of a trained advocate' or the 'pressure on the potential client for an immediate yes-or-no answer to the offer of representation.' " *Id.* Letter recipients can merely avert their eyes to avoid bombardment of their sensibilities, put the letter in a drawer to consider or ignore later, or simply throw the letter away.⁸ *Id.* 486 U.S. at 475-76, 108 S.Ct. at 1923. Given the greatly reduced potential for coercion presented by a letter, the Court held that Kentucky's total ban on direct mail advertising was an unconstitutional restriction on commercial speech. *Id.*

While all the potential clients targeted in *Shapero* were assertedly unable to exercise unimpaired judgment due to the overwhelming nature of pending foreclosure litigation, some of the potential clients in this case are assertedly overwhelmed by different circumstances, such as injury to themselves or family members, or even the loss of a loved one.⁹ The cause of the potential client's

⁸ These recipient responses become even more likely, and the potential for undue influence is even further reduced, when the letter bears the inscription "advertising material" in red on the envelope and on each internal page, as required in Florida. See R. Regulating Fla. Bar 4-7.4(b)(2)(A).

⁹ We note that, although all the potential clients in *Shapero* faced legal difficulties of the same magnitude (a foreclosure suit), some of the potential clients targeted by Appellees in this case will suffer from relatively minor injuries, while others no doubt will have injuries that are more severe. Nevertheless, the Bar rule applies equally to solicitations within thirty-days of a

assertedly impaired judgment, however, is inconsequential to our inquiry under *Shapero*. The relevant inquiry is the *mode* of communication. *Id.* at 474, 108 S.Ct. at 1922. A letter, especially a letter marked "advertising material" in red, possesses limited potential for overreaching, whether the potential client is overwhelmed by pending litigation, personal injury, or grief. *See id.*

In addition, the Bar notes that, while the ban held unconstitutional in *Shapero* was total, the ban under Rule 4-7.4(b)(1)(A) lasts for only thirty days. We find nothing in *Shapero* to suggest that states may impose such a moratorium on direct mail solicitation. The Bar maintains, nonetheless, that its thirty-day ban is justified by the assertedly heightened sensitivities of some potential recipients in the immediate aftermath of a tragedy.¹⁰ Even if *Shapero* could be read to support restrictions based upon the letter recipient's sensitivity, we are not persuaded that the heightened sensitivity of some potential recipients justifies a prophylactic rule such as this.¹¹ This

simple slip and fall or of accidents that result in severe injuries or fatalities.

¹⁰ The potential clients in *Shapero* were all persons against whom a foreclosure suit had been filed. In Kentucky, a defendant must file an answer within twenty days after service of a summons. Ky.R.Civ.P. 12.01. Given this time constraint, *Shapero's* letters would have needed to reach the intended recipients quickly, certainly within twenty days, or the letters' effectiveness would likely be lost entirely. Thus, in *Shapero*, the Court approved direct mail solicitations that would be sent to recipients shortly after the event that triggered the potential need for legal representation.

¹¹ We note that Bar Rule 4-7.4(b)(1)(F) also appears designed to serve the state's interest in protecting potential

is especially true considering that the period immediately following an accident or disaster may well be the time when the need for legal advice is most pressing.¹² "[T]he State may not constitutionally ban a particular letter on the theory that to mail it only to those whom it would most interest is somehow inherently objectionable." *Shapero*, 486 U.S. at 473, 108 S.Ct. at 1922. We conclude, therefore, that the Bar's first asserted substantial interest fails, under *Shapero*, to justify the thirty-day ban on attorney direct mail solicitation of potential personal injury and wrongful death clients.

letter recipients with heightened sensitivities. That Rule prohibits direct mail solicitation of potential clients when "the lawyer knows or reasonably should know that the physical, emotional, or mental state of the person makes it unlikely that the person would exercise reasonable judgment in employing a lawyer." R. 4-7.4(b)(1)(F). This case does not present a challenge to Rule 4-7.4(b)(1)(F) and we make no comment concerning its legality. We mention it only to demonstrate the difference between a prophylactic rule like the thirty-day ban and a more narrowly tailored approach.

¹² Justice Shaw of the Florida Supreme Court noted that, This ban will effectively deprive many accident victims of information concerning the availability of professional legal assistance precisely when they need it most – during the initial period following a serious accident when they are confronted with an unintelligible legal tangle and demands to waive or compromise their rights. It is during this time that informed decisionmaking is crucial.

Petition – Advertising Issues, 571 So.2d at 474 (Shaw, C.J., concurring in part and dissenting in part).

B.

The Bar also asserts that the thirty-day ban serves a substantial state interest by protecting the personal privacy and tranquility of persons who were themselves, or whose loved ones were, recent victims of personal injury or death. We recognize that the intrusion of Appellee's letters upon grief-stricken recipients may be offensive. We also appreciate the Bar's attempt to protect an individual's personal privacy, and to preserve the integrity of the legal profession, by eliminating offensive solicitations such as these.¹³ We are persuaded, however, that under Supreme Court precedent this asserted interest cannot justify a thirty-day ban on certain targeted solicitations and cannot overcome the protections afforded commercial speech under the First Amendment.

¹³ The Supreme Court addressed concerns about offensive lawyer advertising in *Zauderer*, a case that involved truthful newspaper advertising for potential Dalkon Shield litigation clients. There, the Supreme Court noted that states acting through their bar associations do have a substantial interest in ensuring that "attorneys behave with dignity and decorum in the courtroom." 471 U.S. at 647, 105 S.Ct. at 2280. Nonetheless, the Court was uncertain that a state's "desire that attorneys maintain their dignity in their communications with the public is an interest substantial enough to justify the abridgment of [attorneys'] First Amendment rights." *Id.* The Court explained that, even if that state interest could be considered substantial, it was "unpersuaded that the undignified behavior would tend to recur so often as to warrant a prophylactic rule" barring all solicitation of legal employment. *Id.* Moreover, "the mere possibility that some members of the population might find advertising embarrassing or offensive cannot justify suppressing it." *Id.* (citing *Carey v. Population Servs. Int'l*, 431 U.S. 678, 701, 97 S.Ct. 2010, 2024, 52 L.Ed.2d 675 (1977)).

The Bar maintains that Appellee's targeted letters will invade the recipients' personal privacy and disturb the tranquility of their homes. As the Supreme Court noted in *Shapero*, "a targeted letter [does not] invade the recipient's privacy any more than does a substantively identical letter mailed at large. The invasion, if any, occurs when the lawyer discovers the recipient's legal affairs, not when he confronts the recipient with the discovery." 486 U.S. at 476, 108 S.Ct. at 1923. Similarly, the invasion of the potential client's privacy in this case occurs when the lawyer learns of the accident or tragedy with which the potential client is involved. In many cases, this invasion of privacy will involve no more than reading the newspaper.

Nonetheless, the Bar urges that we focus our inquiry on the fact that the solicitation letters in this case will enter into and intrude upon the tranquility of a potential client's home, a place traditionally afforded great protection. See *Frisby v. Schultz*, 487 U.S. 474, 483, 108 S.Ct. 2495, 2502, 101 L.Ed.2d 420 (1988) ("The State's interest in protecting the well-being, tranquility, and privacy of the home is certainly of the highest order in a free and civilized society."). It equates the "invasion" created by the client solicitation letters in this case with that of the anti-abortion protesters banned from a doctor's front lawn in *Frisby*, and with the unavoidable loud noise blasted at homes from sound trucks in *Kovacs v. Cooper*, 336 U.S. 77, 69 S.Ct. 448, 93 L.Ed. 513 (1949). We decline to place the invasion of an envelope stamped "advertising material" in red in such a category. See *Shapero*, 486 U.S. at 476, 108 S.Ct. at 1923. We also note that virtually all direct mail advertising, and most advertising of other

varieties, "invades" the tranquility of the recipients' home, yet is protected by the First Amendment. We conclude, therefore, that the Bar's thirty-day ban on attorneys' direct mail solicitation of potential personal injury and wrongful death clients is not justified by its asserted interest in protecting the recipients' privacy or the tranquility of their homes.

III.

The Bar alternatively maintains that we should uphold the thirty-day ban on direct mail solicitation of personal injury and wrongful death clients as a reasonable time, place, and manner restriction on speech. States may place restrictions on the time, place, and manner of constitutionally protected communication if they do so: (1) without regard to the content of the communication, (2) in a manner narrowly tailored to serve a significant governmental interest, and (3) leaving open alternative channels for communication. *Clark v. Community for Creative Non-Violence*, 468 U.S. 288, 294, 104 S.Ct. 3065, 3069, 82 L.Ed.2d 221 (1984). We conclude that the Bar's Rule fails to meet the first element of the test described in *Clark*.

On its face the thirty-day Rule is unambiguously content-based. It applies only to letters that "concern[] an action for personal injury or wrongful death." R. 4-7.4(b)(1)(A). It is, then, the subject matter of the letter, a solicitation for a certain type of representation, that triggers application of the Rule.

The Bar nevertheless maintains that the Rule has nothing to do with the content of the proposed letter.

Rather, it asserts that application of the Rule is based upon the nature of the intended recipient as an accident victim or family member. Indeed, the Bar claims that it does not need to review the content of a letter in order to determine whether or not the rule is applicable – it need only determine the source of the list of recipients of the letter. As the district court noted, however, letters soliciting the same potential client under identical circumstances for probate representation or any other purpose are permitted. The source of the list of recipients for the probate attorney's letter could be identical to that of the wrongful death attorney's letter, yet only the wrongful death solicitation would be banned under the Rule.

We conclude that the Bar would necessarily need to examine the content of the letter to determine whether the Rule applied to the attorney in question. Application of the rule, therefore, depends on the content of the letter. The Bar's assertion that the Rule is not designed to suppress the content of the letter is unavailing. The Rule is not content-neutral, either on its face or as applied. Accordingly, it is not a reasonable time, place, and manner restriction on speech.

IV.

Justice Powell predicted in *Bates* that recognizing First Amendment protections for attorney advertising would "effect profound changes in the practice of law, viewed for centuries as a learned profession." 433 U.S. at 389, 97 S.Ct. at 2712 (Powell, J., concurring in part and dissenting in part). That prediction has proven true. Unfortunately, the resulting changes have not necessarily

been for the better. We are disturbed that *Bates* and its progeny require the decision we reach today. We are forced to recognize that there are members of our profession who would mail solicitation letters to persons in grief, and we find The Florida Bar's attempt to regulate such intrusions entirely understandable. Although the Bar may not formally restrict such behavior, an attorney's conscience, self-respect, and respect for the profession should dictate self-restraint in this area. To preserve the law as a learned profession demands as much.

For the foregoing reasons, the district court's grant of summary judgment in favor of Went For It, Inc. is

AFFIRMED.
